

SENATE BILL 1868

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 37,
Chapter 1, Part 1, relative to children.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 37-1-102(b), is amended by adding the following as a new subdivision:

() "Child in need of heightened supervision" means a child who a court determines:

(A) Has exhibited or threatened violent behavior consistent with an offense enumerated in § 37-1-131(a)(2)(B)(i) or § 39-14-202, regardless of whether a petition has been filed alleging the child committed a delinquent act and regardless of the child's adjudication or diversion status; or

(B) Is incompetent to be adjudicated delinquent but has exhibited behavior consistent with a violent offense or an attempt to commit a violent offense, including offenses enumerated in § 37-1-131(a)(2)(B)(i) and § 39-14-202;

SECTION 2. Tennessee Code Annotated, Section 37-1-114(c), is amended by redesignating the current subdivisions (c)(7) and (c)(8) as subdivisions (c)(8) and (c)(9) and adding the following as a new subdivision (c)(7):

(7) There is probable cause to believe the child is a child in need of heightened supervision;

SECTION 3. Tennessee Code Annotated, Section 37-1-114(c), is amended by deleting "listed in subdivisions (c)(1)-(6)" and substituting "listed in subdivisions (c)(1)-(7)".

SECTION 4. Tennessee Code Annotated, Section 37-1-116(a), is amended by deleting "delinquent or unruly" and substituting "delinquent, unruly, or a child in need of heightened supervision".

SECTION 5. Tennessee Code Annotated, Section 37-1-116(d), is amended by deleting "alleged to be delinquent" and substituting "alleged to be delinquent, unless the child is also a child in need of heightened supervision".

SECTION 6. Tennessee Code Annotated, Section 37-1-116(k)(1), is amended by deleting "unless the following" and substituting "unless the child is also a child in need of heightened supervision or the following".

SECTION 7. Tennessee Code Annotated, Section 37-1-130(b), is amended by deleting "to be delinquent" and substituting "to be delinquent or a child in need of heightened supervision".

SECTION 8. Tennessee Code Annotated, Section 37-1-137(b)(1), is amended by adding the following as a new subdivision:

(D)

(i) The child is alleged to have committed an assault against a staff member at the child's residential placement. If the child is found to have committed such an assault following a disciplinary offense hearing or if the child is adjudicated delinquent for an assault that was committed against a staff member at the child's residential placement, then the child's indefinite commitment must not be discharged and the child must not be placed on home placement supervision for an additional six (6) months from the date of the assault.

(ii) A child committed to the custody of the department for an indefinite time must be informed of this subdivision (b)(1)(D) upon commitment.

SECTION 9. This act takes effect July 1, 2026, the public welfare requiring it.